

STATE OF NEW YORK

9156--A

2025-2026 Regular Sessions

IN ASSEMBLY

October 17, 2025

Introduced by M. of A. STECK, WALSH, GRIFFIN -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to prohibiting the sale of 7-hydroxymitragynine products

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. The general business law is amended by adding a new section 392-l to read as follows:

§ 392-l. Sale of 7-hydroxymitragynine products. 1. For purposes of this section, the term "7-hydroxymitragynine products" shall mean any substance, material, mixture, compound, preparation, extract, or finished goods that contains 7-hydroxymitragynine at a level that exceeds two percent of total alkaloids or one milligram per serving.

2. The provisions of this section shall apply to the sale, offer for sale, delivery, or distribution of all 7-hydroxymitragynine products.

3. No corporation, partnership, limited liability company, firm, online platform, or any other business entity doing business within this state shall knowingly sell, offer for sale, or deliver 7-hydroxymitragynine products.

4. Any corporation, partnership, limited liability company, firm, online platform, or other business entity doing business within this state that violates the provisions of this section by knowingly selling, offering for sale, or delivering 7-hydroxymitragynine products shall be subject to a civil penalty of not more than three thousand dollars for a first violation, and sixty-five hundred dollars for each subsequent violation, recoverable in an action by the attorney general of the state of New York. All funds collected or received by the state from civil penalties imposed under this section shall be deposited in the New York

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 state drug treatment and public education fund established pursuant to
2 section ninety-nine-jj of the state finance law.

3 § 2. This act shall take effect on the ninetieth day after it shall
4 have become a law.